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File No: EXP202303750

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 29, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against THE COMAKING SPACE, S.L.U. (hereinafter, the claimed party), through the Agreement that is transcribed:

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File No: EXP202303750

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST:

A.A.A. (hereinafter, the claiming party) filed a complaint with the Spanish Agency for Data Protection on February 11, 2023. The complaint is directed against THE COMAKING SPACE, S.L.U. with NIF B16981367 (hereinafter, the claimed party). The reasons on which the complaint is based are as follows:

The claiming party states that they received, on January 31, 2023, a commercial electronic communication at their email address from the claimed party, without their consent, and without any prior relationship existing. Furthermore, they state that on October 12, 2022, they received a commercial email from a hotel where they had previously stayed, which was indeed authorized for such purposes. This email did not use the BCC functionality, which allowed all recipients to see the other email addresses to which it was addressed. The claiming party states that, in the list of recipients, the email address from which the claimed party sent their advertising email can be seen (**EMAIL.1). By virtue of these findings, they consider it possible that their data was obtained through that email.

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After these circumstances, the claiming party submitted a request for access and deletion to the claimed party, asking them to indicate the source of such personal data. The latter responded to this question, stating that the data was in a database managed by their last salesperson, and could not justify the reason for the inclusion of the claimant in it.

Along with the aforementioned complaints, the claiming party provides the following documentation:

1. The commercial email received by the claiming party on January 31, 2023, in which the claimed party is indicated as the data controller.
2. The header of another commercial email sent on October 12, 2022, by Hotel ***HOTEL.1; where the claiming party stayed and where the email addresses of the recipients are shown.
3. A copy of the requests for access and deletion made by the claimed party and sent to the claiming party, as well as the responses received from the latter.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the claimed party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set out in the data protection regulations.

No response has been received to this forwarding letter.

THIRD: On May 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claiming party was admitted for processing.

LEGAL GROUNDS

I

In accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure.

II

Currently, "spam" refers to all types of unsolicited communication made electronically. Thus, "spam" is understood to mean any message that is not

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3/9

requested and that normally aims to offer, market, or attempt to awaken interest regarding a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers in terms of the volume of transmissions have allowed this practice to be carried out abusively and indiscriminately. The LSSI, in its article 21.1, expressly prohibits "the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients." In other words, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities are disallowed without the express consent of the recipient, although this prohibition finds its exception in paragraph 2 of the aforementioned article 21, which authorizes the sending of commercial communications when "there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client." Thus, the sending of unsolicited commercial communications, outside the exceptional case of article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

In this regard, according to these regulations, consent, in addition to being prior, specific, and unequivocal, must be informed. And this information must be full and accurate regarding the sector of activity from which the recipient may receive advertising, with a warning about the right to refuse or withdraw consent. This information must be configured as a necessary prerequisite to validate the expression of will of the affected party.

III

As already noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as an information society service and is defined in its Annex as follows:

"f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities.

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4/9

For the purposes of this Law, data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, shall not be considered commercial communication, nor shall communications related to goods, services, or the image offered when they

are prepared by a third party and without economic compensation.

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Information Society Service" as "any service normally provided for a fee, at a distance, by electronic means, and at the individual request of the recipient."

The concept of information society service also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

The aforementioned section adds that the sending of commercial communications is an information society service, provided that it represents an economic activity. According to section d) of the cited Annex, a recipient is the "natural or legal person who uses, whether or not for professional reasons, an information society service."

IV

In the present case, the claiming party states that they received a commercial communication from the claimed party, despite not having given their consent, nor being in a prior contractual relationship. This fact is evidenced by the email provided in their own claim, where the commercial email sent is indicated, and the recipient is the claiming party. They are unaware of the origin of the acquisition of such data, although, after their own inquiries, they state that it could have been extracted from an email that was mistakenly sent to different recipients by a hotel where they previously stayed, since among those recipients was also the claimed party.

The claimed party, for its part, after the request made by the claiming party, has stated that it is unaware of the reason for the inclusion of the claiming party's data in its database, as can be inferred from the emails provided along with the claim.

In this regard, such facts could constitute an infringement, attributable to the claimed party, for violating Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not previously been requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the recipient's contact data and uses it to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited."

The cited infringement is classified as minor in Article 38.4.d) of the LSSI, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement."

V

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000, with the criteria for their graduation established in Article 40 of the same regulation, which states the following:

"The amount of the fines imposed shall be graduated according to the following criteria:

a) The existence of intent.

b) The period of time during which the infringement has been committed.

c) The recurrence of committing infringements of the same nature, when declared as such by a firm

resolution.

- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of business affected by the committed infringement.
- g) Adherence to a code of conduct or to a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.”

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 21 of the LSSI, allows for an initial assessment of a fine of €2,000 (two thousand euros).

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6/9

VI

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against THE COMAKING SPACE, S.L.U., with NIF B16981367, for the alleged infringement of Article 21.1 of Law 34/2002, of July 11, on information society services and electronic commerce, classified in Article 38.4.d) of the same regulation.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided for in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement classified in Article 38.4.d) of that regulation, an administrative fine of 2,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to THE COMAKING SPACE, S.L.U., with NIF B16981367, granting a hearing period of ten business days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at 1,600.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 1,600.00 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 1,200.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (1,600.00 euros or 1,200.00 euros), it must do so by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On July 7, 2023, the respondent has proceeded to pay the sanction in the amount of 1,200 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the initiation of the procedure, entails the renunciation of any action or appeal in the administrative route.

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8/9

administrative appeal against the sanction and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for the Protection of Data must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures"

provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202303750, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to THE COMAKING SPACE, S.L.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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